

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ANDRE WATTS

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JOSE TAVAREZ, SHIELD # 2044,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER DAVID MEIJA, TAX ID #
956088, INDIVIDUALLY AND AS A POLICE
OFFICER, SGT FRANCISCO LOPEZ, TAX ID #
935203, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER VARGAS, 28TH PCT.,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER TRIGUENO, 28TH PCT.
INDIVIDUALLY AND AS A POLICE OFFICER,
SGT. HERNANDEZ, 28TH PCT., INDIVIDUALLY
AND AS A POLICE OFFICER, SGT. FOURCELL,
28TH PCT., INDIVIDUALLY AND AS A POLICE
OFFICER,

Defendants.
-----X**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

Dated Purchased:

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This th day of January, 2018



EMDIN & RUSSELL, LLP.

Jeffrey L. Emdin, Esq.,

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, New York 10018

(212) 683-3995

Defendants address:

City of New York

c/o Corporation Counsel,

City of New York

100 Church Street

New York, New York 10007

Police Officer Jose Tavaréz

Police Officer David Mejía

Sgt. Francisco Lopez

Sgt. Fourcell

Sgt. Hernandez

Police Officer Vargas

Police Officer Triguero

c/o 28th pct.

2271-89 Frederick Douglas Boulevard

New York, NY 10027

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Defendants.

-----X

The plaintiff, Andre Watts, by his attorneys, Emdin & Russell, LLP complaining
of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the
defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal
corporation duly organized and existing under, and by virtue of, the laws of the State of New
York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the
City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and

controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Police Officer Jose Tavaréz, hereinafter referred to as "Tavaréz" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 28th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief, Tavaréz' shield # is 2044.

4. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, "Tavaréz", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee. Upon information and belief at all relevant times herein Tavaréz was assigned as a Neighborhood Coordination Officer.

5. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Police Officer David Meija, hereinafter referred to as "Meija" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 28th pct., his tax id number is 956088, and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, "Meija" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee. Upon information and belief at all relevant times herein Meija was assigned as a Neighborhood Coordination Officer.

7. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Sgt. Francisco Lopez, hereinafter referred to as "Lopez" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 28th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Lopez' tax id number is 935203.

8. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, "Lopez", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant. Upon information and belief, Lopez, on January 15, 2017, was Tavarez' and Meija's supervisor.

9. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Police Officer Vargas (first name and shield number unknown but referenced in TRI Investigating Supervisor Assessment Report, Incident # 2017-028-000007), hereinafter referred to as "Vargas" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 28th pct., and at all relevant times set forth below acted in the capacity of a police officer.

10. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, "Vargas" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

11. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Police Officer Trigueno (first name and shield number unknown but referenced in TRI Investigating Supervisor Assessment Report, Incident # 2017-028-000007), hereinafter referred to as "Trigueno" was employed as a Police Officer by the "City" and/or

“NYPD” and assigned to the 28th pct., and at all relevant times set forth below acted in the capacity of a police officer.

12. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, “Trigueno” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

13. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Sgt. Fourcell (first name and shield number unknown but referenced in TRI Investigating Supervisor Assessment Report, Incident # 2017-028-000007), hereinafter referred to as “Fourcell” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 28th pct., and at all relevant times set forth below acted in the capacity of a police officer.

14. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, “Fourcell” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

15. Upon information and belief, at all times hereinafter mentioned, and on the 15th day of January, 2017, Sgt. Hernandez (first name and shield number unknown but referenced in TRI Investigating Supervisor Assessment Report, Incident # 2017-028-000007), hereinafter referred to as “Hernandez” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 28th pct., and at all relevant times set forth below acted in the capacity of a police officer.

16. Upon information and belief at all times hereinafter mentioned and on the 15th day of January, 2017, “Hernandez” was acting within the scope of his employment as a police

officer and under the direction of the “City” as their agent, servant and/or employee.

17. Upon information and belief, on January 15, 2017, Tavarez, Meija, Lopez, Vargas, Trigueno, Fourcell, and/or Hernandez, collectively referred to as “the officers”, were acting under, and required to follow the New York City Police Patrol Guidelines, Interim Orders in effect, the laws of the State of New York and of the United of America.

18. Upon information and belief, on or before January 15, 2017, each of the officers received training as police officers from the defendant, City, including but not limited to the use of force, reporting the excessive use of force, the requirement to intercede and/or stop the excessive use of force, probable cause to arrest, securing and preserving evidence and/or witnesses, filling out police paperwork, and/or de-escalation techniques when confronting a “combative or uncooperative person”..

19. Upon information and belief, the City and/or NYPD, on the 15th day of January, 2017, provided or equipped Tavarez with a Taser aka a Conducted Electrical Weapon, hereinafter referred to as “Taser” or “CEW”.

20. Upon information and belief, on or before January 15, 2017, the “City” and/or “NYPD” trained, and/or was required to train the defendant Tavarez in the proper use of the Taser, and how and when it should or could be used.

21. On the 15th day of January, 2017, plaintiff, Andre Watts, hereinafter referred to as “Watts” was a resident of the State of New York, County of New York, residing at 95 Lenox Avenue, apt 2d, New York, NY.

22. That on January 15, 2017 at approximately 6:00 p.m. the plaintiff, was lawfully outside of his apartment at 95 Lenox Avenue, NY, NY, in the stairway thereat, hereinafter

referred to as “ the location”, with his brother, Trevor Watts, and a friend, Robert Edwards, viewing a video on a cellphone.

23. At that time, place, and location Tavarez approached the group (Watts, his brother and Edwards) from the stairway above the plaintiff, while Meija, upon information and belief approached from the stairs below.

24. At that time and location, Officers Tavarez and Meija were on duty and in uniform.

25. Upon information and belief Tavarez approached with his Taser out and pointed towards the direction of the plaintiff and/or his brother

26. The plaintiff was not engaged in any criminal activity.

27. Tavarez and/or Meija demanded to know “where it’s at”. When the plaintiff and the other two individuals denied knowing what the officers were talking about, the officers demanded to see their identification.

28. Plaintiff and his brother questioned why they were being asked for identification, that they hadn’t done anything, and the officers tone grew increasingly hostile when the plaintiff explained that he lived in the building.

29. The plaintiff advised the officer that he thinks he has his identification in his wallet and offered to get it, but Meija told him “it’s too fucking late for that” and physically grabbed the plaintiff by his clothes and lifted the plaintiff up from the step on which he was sitting.

30. Meija handcuffed one of the plaintiff’s wrists and was physically turning the plaintiff around. Upon information and belief, Tavarez kept his taser pointed at the plaintiff who

was offering no resistance.

31. Tavarez, without warning or cause, fired his taser at the plaintiff striking the plaintiff in the temple with one dart and the other dart striking Meija on his pinky finger.

32. Trevor ran for help and called the police.

33. Edwards fled the location in fear.

34. Once struck in the head the plaintiff dropped to the ground in extreme pain, and pulled the dart from his head.

35. Meija picked the plaintiff off the ground and Tavarez descended the stairs and together with Meija he struck the plaintiff in his head and body. Upon information and belief Tavarez discharged his taser a several more times in dry stun mode to the plaintiff's side and shoulder areas.

36. Soon additional officers arrived on the scene, upon information and belief, including but not limited to the other named officers herein.

37. Upon information and belief one or more of the officers continued to strike the plaintiff while the other officers failed to intercede.

38. The plaintiff was handcuffed and arrested. He was taken to an elevator in handcuffs, and twisted his arms and lifting his arms up behind his back, causing further pain.

39. The arresting officer is listed as Tavarez and the officer approving the arrest is Lopez.

40. The plaintiff's request and obvious need for immediate medical attention was ignored.

41. The plaintiff was transported in handcuffs to the 28th pct.

42. Tavaréz filled out false police reports claiming that he observed the plaintiff, an unapprehended individual, and Edwards smoking marijuana in the stairwell at the location. He falsely claimed that Watts violently resisted arrest and pushed and attempted to punch Meija. The report falsely claimed that Watts was only subdued when additional officers arrived on the scene.

43. The plaintiff was held in custody at the 28th pct.

44. The plaintiff was dissuaded by police personnel from seeking medical attention.

45. Eventually the plaintiff was taken to Harlem Hospital in handcuffs and leg shackles for treatment. Upon information and belief he was escorted by Meija.

46. The plaintiff was arraigned in New York County Criminal Court on July 16, 2017. The claimant was falsely charged with having committed the following crimes: assault in the third degree; resisting arrest; aggravated harassment in the second degree; criminal possession of marijuana in the fifth degree; unlawful possession of marijuana and harassment in the second degree.

47. The criminal court complaint, docket # 2017ny004742, was signed by Tavaréz with the intent to prosecute the plaintiff.

48. A corroborating affidavit was signed by Meija on January 18, 2017, with the intent to prosecute the plaintiff.

49. The criminal court complaint contains false statements including but not limited to a claim that plaintiff was observed in the stairwell holding a lit marijuana cigarette; that he was observed dropping the lit marijuana cigarette to the floor; that plaintiff pushed and struck Meija in the stomach, shoulder and arms with a closed fist; that plaintiff refused to place his

hands behind his back and refused to be handcuffed.

50. Plaintiff was released on his own recognizance at arraignment.

51. The plaintiff was compelled to hire legal counsel to defend himself from false charges.

52. The plaintiff had to appear in criminal court on March 13, 2017, April 27, 2017, July 6, 2017, July 20, 2017, September 18, 2017, October 5, 2017, October 24, 2017 and December 14, 2017.

53. On December 14, 2017 all criminal charges were dismissed against the plaintiff.

54. The plaintiff was physically and emotionally injured by the defendants' actions.

55. That notice of the plaintiff's claim and notice of intention to sue for damages, as well as a Supplemental Notice of Claim the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

56. That a 50(h) hearing was held on January 3, 2018.

57. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

58. That this action is commenced within one year and 90 days after the cause of action arose.

59. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS**

60. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully and at length set forth herein.

61. That beginning on or about the 15th day of January, 2017, at or about approximately 6:00 p.m. at or near the "location" until the plaintiff's arraignment on January 16, 2017, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

62. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

63. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

64. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

65. That all said conduct was committed by the officers within the scope of their employment with the City of New York and/or the New York City Police Department.

66. That the plaintiff was confined against his will until he was arraigned on January 16, 2017, when he was released upon his own recognizance.

67. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

68. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS**

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and effect as if more fully and at length set forth herein.

70. That beginning on or about the 15th day of January, 2017, at or about approximately 6:00 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

71. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

72. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants

and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

73. That the defendants, their agents servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

74. That all said conduct was committed by Tavarez, Meija and other officers present was within the scope of their employment with the City of New York and/or the New York City Police Department.

75. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

76. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

77. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "76" with the same force and affect as if more fully and at length set forth herein.

78. On January 15, 2017 at the location the plaintiff was seized, searched, grabbed, struck, tasered, thrown to the ground, hit, threatened, and physically touched by the defendant,

“City”, and the “NYPD” its agents/servants, and/or employees, including defendants Tavaréz and Meija and, upon information and belief struck by other police officers present.

79. That all said contact was committed without the plaintiff’s permission or consent.

80. That all said contact was unlawful and without privilege.

81. That the use of force was without justification.

82. That all contact committed by defendants through their agents, servants, and/or employees, including defendants “Tavaréz” and/or “Meija”, was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

83. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

84. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR EXCESSIVE USE OF FORCE AGAINST THE
DEFENDANTS, CITY, TAVAREZ AND MEIJA AND OTHER OFFICERS

85. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "84" with the same force and affect as if more fully and at length set forth herein.

86. That all said conduct and contact herein as described was excessive and beyond all reasonable needs necessary to subdue, control the plaintiff or to protect the lives of the defendant officers.

87. That the plaintiff on January 15, 2017, was not actively resisting arrest, did not possess any weapon, did not threaten the use of force, and was relatively small in size and did not pose any threat to either Meija or Tavarez.

88. That the defendants use of a CEW to plaintiff's temple and body , as well as hand strikes to his head and body constituted excessive and unlawful force.

89. That all said contact was committed without the plaintiff's permission or consent.

90. That all said contact was unlawful and without privilege.

91. That the use of force was without justification.

92. That the use of force was excessive and beyond the means necessary to effectuate an arrest.

93. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "Tavarez" and/or "Meija", was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

94. That the above acts committed by the defendants constituted an assault and/or battery through the use of excessive force of the plaintiff.

95. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR
NEGLIGENCE AGAINST THE DEFENDANTS**

96. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "95" with the same force and affect as if more fully and at

length set forth herein.

97. That the defendant, "City" was careless and/or negligent in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising, investigating, disciplining and/or promoting as and for its employees, defendants "Meija", "Tavarez", and/or the other officers present in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers, including in the proper time to and way to use a CEW weapon; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

98. That upon information and belief the City by and through its agents had received prior civilian complaints and/or lawsuits, against defendants "officers", prior to the stop, seizure, search, discourtesy, excessive use of force, assault and battery of Watts on January 15, 2017.

99. That the City failed to properly retrain said officers, negligently continued to employ said officers, negligently promoted and assigned said officers, negligently retained said officers despite evidence of their police misconduct and continued to assign said officers to act in an enforcement/arrest capacity, without proper supervision, training and discipline.

100. That the 'officers', the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a

reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

101. That the aforesaid occurrence, to wit: seizure, search, arrest, imprisonment assault and battery, excessive use of force, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants without any negligence on the part of the plaintiff contributing thereto.

102. That by reason of the aforesaid, the plaintiff, was imprisoned, lost his freedom, was physically and emotionally injured and stressed, was maliciously prosecuted, and he was thereby damaged.

103. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SIXTH CAUSE OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 and 1988 AGAINST THE CITY OF NEW YORK

104. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "103" with the same force and effect as if more fully and at

length set forth herein.

105. That on or about the 15th day of January, 2017 at or about approximately 6:00 p.m. at the “location” Meija and Tavares were present thereat as part of their regular and official employment as police officers for the defendant, “City”.

106 Tavares was equipped with a CEW provided to him by the defendant “City”, and upon information and belief trained by the City in both “when” and “how” it, the CEW, is to be used.

107. The plaintiff asserts that the City provided inadequate training and/or guidance to Tavares, and other New York Police Officers in: the proper way to use/fire a taser or a CEW; in when an officer can or should use a Taser or a CEW; and in alternative uses of force then a CEW. Upon information and belief officers receive one day of training which includes a written test and a field test on dummy targets before receiving taser certification.

108. That said inadequate/training guidance offered by the City has resulted in an unclear policy as to when officers are justified in their use of a CEW, officers failing to use a lesser means of force other than a taser or a CEW charge, officers using a CEW charge as a means of a compliance technique through pain, and unnecessary injuries to citizens of the City of New York, including the plaintiff herein.

109. That the City has also acted with deliberate indifference to the need to change their training, to offer supplemental training to members previously equipped with Tasers, to the need to offer clearer guidelines when it is permissible to use a Taser, how to use a taser and to the many instances wherein officers used tasers improperly and/or unnecessarily resulting in unnecessary pain and injury to the recipient of the CEW discharge.

110. Under New York City Police Patrol Guidelines, officers are required “when appropriate and consistent with personal safety, “to” use de-escalation techniques to reduce or eliminate the necessity of use of force”.

111. The same Patrol Guidelines authorizes the use of force, only to the extent “necessary to gain control or custody of the subject”. According to Patrol Guideline 221-08, firing a taser is authorized when the subject is “actively resisting, exhibiting active aggression, or to prevent the individual from physically injuring themselves or others present”.

112. This language and the training that officers receive thereon is vague and has lead to unclear direction when an officer can and should utilize his taser, leading officers to utilize a taser at both low lever of a suspect’s resistance and too early in an encounter before giving other conflict resolution means an attempt

113. Although the same patrol guideline offers factors to consider when assessing whether to utilize a taser, such as disparity in size and strength, the level of resistance and threat to others, and the hostility of the location, the failure to establish clear, unequivocal guidelines (including instances wherein the subject was unarmed, isolated, and relatively of small stature) has lead to needless discharge of electrical charges when lesser means of force were available, such as the instance presented herein.

114. Other requirements have not acted as a check to the unnecessary use of the taser, i.e such as the requirement that an officer who witnesses the excessive use of force is required to report it, or the requirement that a verbal warning be attempted to be issued prior to firing the taser.

115. In fact the City and/or the NYPD has specifically loosened the requirement that a

warning be issued to give the subject notice. Whereas the old patrol guideline made a verbal warning a requirement, , PG 212-117, its successor and current guideline only requires that an officer place a red dot (from the taser) on the person's body in an attempt to achieve voluntary compliance (PG 221-08), and that a verbal warning be given only if feasible. The failure to require a verbal warning does not provide the subject individual with a reasonable opportunity to voluntarily comply (even prior to displaying the electrical arc).

116. Thus, the new guideline does not even account for instances wherein the subject does even see the presence of a taser, or of a red dot on his person, or adequately understand warnings issued. (see lawsuit filed by an autistic non-verbal man who was shot with a taser by NYPD officers in July 2014, Miguel Torruella.

117. Upon information and belief, the TRI incident report form used when an officer discharges a CEW, does not even have to indicate whether a formal warning was issued prior to discharge, thus making it difficult for the defendant City to analyze data whether officers are issuing adequate warnings prior to discharge.

118. Moreover the NYPD's definition of "active aggression" is vague, unclear, and confusing.

119. In fact the New York City Dep't of Investigation, Office of the Inspector General for the NYPD issued on October 1, 2015, concluded that the NYPD current use of force policy is vague and imprecise, and provides little guidance to individual officers as to what actions constitute force. Upon information and belief, although the NYPD patrol guideline section involving use of force was subsequently revised, many officers, including the officers named herein, either did not receive adequate training or display adequate knowledge in the change of

the guideline. The Third Annual Use of Force Report by the DOI issued in March 2017, found that although use of force is defined when used against an officer the same guidelines does not define use of force when used against a civilian by an officer.

120. The same 10/1/15 report found that the New York City Police Patrol Guide does not properly instruct officers to de-escalate encounters with the public, and that training does not adequately focus on de-escalation. The report recommended that the NYPD introduce, as part of their formal training, scenario based training involving de-escalation techniques. Upon information and belief this suggestion has not been implemented by the defendants. See Second Annual Report issued by DOI in April 2016 and Third Annual Report issued in March 2017

121. Further, although the DOI found in its 2015 report that addressing an officer's failure to intervene is a critical component to enforce compliance with the use of force policies of the NYPD, in situations where officers use unnecessary or excessive force, and the second report reflects the City's intent to conduct in service training on use of force including the component requirement officer intervention and reporting, upon information and belief little if anything has been done by the defendants to enforce this criteria and discipline those who fail to follow it.

122. Despite the limitations on the use of force, it has been reported that there were 501 Taser discharges in the calendar year 2016. Data is not available for 2017 but there has been a report of 17 year old pregnant unarmed female tasered in her own home by NYPD officer(s) in February 2017, i.e. Dailene Rosario.

123. It has been further reported (in December 2017), that an "independent" oversight board, Civilian Complaint Review Board, "CCRB" with input by the defendant City and NYPD examined the use of tasers and CEW discharges.

124. Upon information and belief said CCRB report initially made a recommendation that prohibited the use of Tasers on unarmed individuals. That recommendation was removed after, upon information and belief, a collaborative process involving Mayor deBalsio and the NYPD, requested its removal in the final report.

125. Upon information and belief in its initial draft the Civilian Complaint Review Board “CCRB”, concluded that in most of the reviewed cases involving tasers, the victims were unarmed individuals (including a finding that almost 30% of use of tasers came when the suspect was in police custody). Yet, upon information and belief, both the recommendation and the underlying data were excised from the final report.

126. Upon information and belief said draft report also found evidence that tasers were being used in response to unruly or obstinate behavior by suspects. In its final draft report the language was modified to ...”there is a concern that tasers are being used in response to unruly or obstinate behavior by suspects. (It was reported that officers from the NYPD pushed and threatened students from Midwood High School in Brooklyn, with a taser, asking them if they wanted to “ride the lightning” This occurred in March 2017.)

127. The CCRB report also reported the use of tasers in a touch stun or drive stun mode which delivers pain to the recipient when touched against his/her body, and as such is used as a pain compliance technique. The report notes that this type of pain compliance is discouraged as it can result in “the tased person flailing, making it harder to arrest the subject”.

128. Said same report, also confirmed that it is unmistakable that the pain resulting from taser shock is one of the most painful experiences one can imagine. It results in extreme pain from the head to the toes, and everything in between.

129. It is clear from these reports that the use of a taser is an extremely painful method (upon information and belief it delivers 50,000 volts) that is being used to obtain compliance by force. It is also clear that there is a great need for proper training and adequate knowledge in both its use and when to use, enforcement of standards of compliance, clear instruction as to when use is authorized. Further, there is a need to train that a CEW should only be used only after de-escalation attempts, including warnings and less lethal, potentially lethal or harmful means have proved ineffective. The defendant City has failed to provide these clear directives, training, enforcement and has been deliberately indifferent to the many instances when the use of a taser was improperly applied, which had a direct bearing to the use of a taser against the plaintiff herein.

130. On January 15, 2017, the plaintiff was unarmed, he was approximately 5'8" tall weighing 145 pounds, he was being confronted on suspicion of possession of marijuana, he was confronted by two officers of bigger size, one from behind and the other from in front with little risk of and no attempt to escape, and he offered no physical threat to the officer(s). Upon information and belief, the plaintiff was shot with a taser dart in the temple and then struck with a dry stun because, upon information and belief, he questioned the officers reasons for stopping and questioning him in the stairwell of his own building when he was doing nothing unlawful.

131. The plaintiff by his words and actions did not demonstrate an intent to be violent and/or harm the officers.

132. Further, upon information and belief, the manufacturer of the Taser in question, Model X26, recommends deployment at lower center mass and cautions to avoid the head and neck area. Upon information and belief Taser cautions to monitor the condition of the subject if

struck in the head area.

133. Upon information and belief these warnings were not introduced to or followed by NYPD officers, including the officers named herein, resulting in the plaintiff being struck in the temple with an electrical dart, and then not receiving immediate medical attention.

134. It has been reported that darts to the head cause injuries such as persistent headaches, reported in Short Sharp Science dated May 2, 2012, reporting the findings of Forensic Science International.

135. Upon information and belief in order to cover up their misconduct the officers, individually and/or collectively conspired to file false police reports, voucher false evidence, give false statements and/or sign a false criminal court complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the plaintiff.

136. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

137. That said acts constituted acts of cruel and unusual punishment and deprived plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

138. That said acts constituted acts violated the plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983.

139. Upon information and belief the City was aware that the NYPD customs, policies

and procedures, as well as their deliberate indifference to the unconstitutional applications of their customs, policies and procedures, and need for reformation of its training, oversight, analysis, supervision, monitoring, disciplining and review would lead to constitutional violations of its citizenry, and did lead to said violations of the plaintiff's constitutional rights on January 15, 2017.

140. That the plaintiff's false arrest, assault and battery, excessive force used against him, failing to intervene and mitigate, and malicious prosecution and violation of his constitutional rights resulted from the defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and /or police practices which included excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to train; failing to retrain; failing to enforce patrol guidelines; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; failing to properly supervise, train, investigate or discipline officers; engaging in illegal stop question and frisks, permitting or condoning illegal search and seizure of property and persons, any and /or all of the above contributing to plaintiff's false arrest, and prosecution, and injuries.

141. Defendants actions on January 15, 2017 were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the plaintiff.

142. That plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered, and deprived of his constitutional rights as

set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.

143. That by reason of the aforesaid, the plaintiff was deprived his liberty, lost income, assaulted, injured, maliciously prosecuted, and he was damaged.

144. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper on the sixth cause of action.

AS AND FOR A SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988 BY POLICE OFFICER TAVAREZ IN HIS
INDIVIDUAL CAPACITY AND AS AGENT OF THE CITY OF NEW YORK, THE
PLAINTIFF ALLEGES:

145. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "144" with the same force and effect as if more fully and at length set forth herein.

146. That at all times hereinafter mentioned, the defendant "Tavarez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

147. That at all times hereinafter mentioned, the defendant Tavarez was acting pursuant to orders and directives from defendant, The City of New York.

148. That during all times hereinafter mentioned, the defendant "Tavarez",

individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983.

149. That the unlawful and illegal conduct of defendant Tavaréz deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be punished or subjected to excessive unnecessary force c)
- c) The right to freedom of speech.
- d) The right to equal protection under the law.
- e) The right not to be subjected to cruel and unusual punishment

150. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination and malicious prosecution, and conspiracy to commit the above, the defendant "Tavaréz" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided

to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

151. That as a direct proximate result of "Tavarez"' actions plaintiff was physically and emotionally injured, lost his freedom, was required to hire legal counsel and attend court proceedings, received medical care and treatment and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

152. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

153. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988 BY POLICE OFFICER MEIJA IN HIS
INDIVIDUAL CAPACITY AND AS AGENT OF THE CITY OF NEW YORK, THE
PLAINTIFF ALLEGES:

154. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "153" with the same force and effect as if more fully and at length set forth herein.

155. That at all times hereinafter mentioned, the defendant "Meija" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the

policies, statutes, ordinances, rules and regulations of the City of New York.

156. That at all times hereinafter mentioned, the defendant Meija was acting pursuant to orders and directives from defendant, The City of New York.

157. That during all times hereinafter mentioned, the defendant "Meija", individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983.

158. That the unlawful and illegal conduct of defendant Meija deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be punished or subjected to excessive unnecessary force c)
- c) The right to freedom of speech.
- d) The right to equal protection under the law.
- e) The right not to be subjected to cruel and unusual punishment

159. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff's person, his false arrest and false imprisonment,

assault and battery, falsifying evidence, discrimination and malicious prosecution , and conspiracy to commit the above, the defendant "Meija" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

160. That as a direct proximate result of "Meija" actions plaintiff was physically and emotionally injured, lost his freedom, was required to hire legal counsel and attend court proceedings, received medical care and treatment and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

161. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

162. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANTS FOR MALICIOUS PROSECUTION

163. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "162" with the same force and effect as if more fully and at length set forth herein.

164. The defendants filled out false police reports, signed false criminal court complaint and corroborating affidavits against the plaintiff for the purpose of prosecuting him for

crimes set forth above they knew that the plaintiff did not commit.

165. The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff and the injuries that he sustained at the hands of the police.

166. The plaintiff was at all times innocent of any crime charged.

167. That due to the malicious prosecution the plaintiff was caused to spend money to obtain legal counsel and attend and appear at New York County Criminal Court on the court dates set forth above

168. All criminal charges were dismissed against the plaintiff.

169. That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the sixth through eighth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Ninth causes of action.

DATED: New York, New York
January 10, 2018



Jeffrey L. Emdin, Esq.
Emdin & Russell, LLP.
Attorneys for the Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

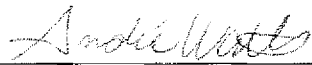
CLIENT'S VERIFICATION

STATE OF NEW YORK

COUNTY OF NEW YORK

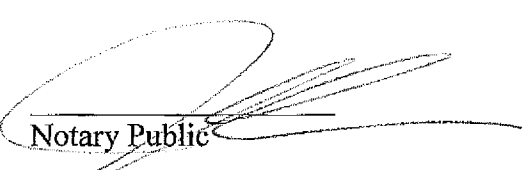
The undersigned plaintiff, Andre Watts, swears under the penalties of perjury as follows:

That I am the plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.



Andre Watts

Sworn to before me on
This 7 day of January, 2018


Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5088700
Qualified in Westchester County
Commission Expires November 12, 2018

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ANDRE' WATTS

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOSE TAVAREZ, SHIELD # 2044, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER DAVID MEIJA, TAX ID #956088, INDIVIDUALLY AND AS A POLICE OFFICER, SGT FRANCISCO LOPEZ, TAX ID # 935203, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER VARGAS, 28TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER TRIGUENO, 28TH PCT. INDIVIDUALLY AND AS A POLICE OFFICER, SGT. HERNANDEZ, 28TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER, SGT. FOURCELL, 28TH PCT., INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, NY 10018

(212) 683-3995

To:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Jose Tavarez
c/o 28th pct.

Police Officer David Meija
c/o 28th pct.

Sgt. Francisco Lopez
c/o 28th pct.

Sgt. Fourcell
c/o 28th pct.

Sgt Hernandez
c/o 28th pct.

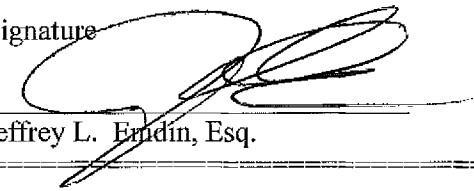
Police Officer Vargas
c/o 28th pct.

Police Officer Trigueno
c/o 28th pct.

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 7, 2018

Signature


Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on